

SENATE BILL 1005

By Haile

AN ACT to amend Tennessee Code Annotated, Title 18;
Title 36 and Title 37, relative to adoption.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 36-1-116, is amended by designating subsection (b) as subdivision (b)(1) and adding the following as a new subdivision (b)(2):

(2)

(A) Notwithstanding another law to the contrary, if the petitioners are seeking to adopt more than one (1) child at the same time and the children are siblings who share at least one (1) biological parent, then the petitioners may include all of the children in one (1) petition to adopt unless the court issues a written order finding that it is in the best interest of the children that separate petitions be filed.

(B) The clerk of court shall charge only one (1) filing fee for a petition filed pursuant to subdivision (b)(2)(A).

SECTION 2. Tennessee Code Annotated, Section 36-1-113(d), is amended by adding the following as a new subdivision:

(5)

(A) Notwithstanding another law to the contrary, if the petitioners are seeking to adopt more than one (1) child at the same time and the children are siblings who share at least one (1) biological parent, then the petitioners may include all of the children in one (1) petition to terminate parental rights, if filed

separately from the adoption petition, unless the court issues a written order finding that it is in the best interest of the children that separate petitions be filed.

(B) The clerk of court shall charge only one (1) filing fee for a petition filed pursuant to subdivision (d)(5)(A).

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.